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Gavin Newsom signs new gun tax and concealed carry restrictions into law

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SACRAMENTO — Guns and ammunition will face new 11% excise taxes under a new law California Gov. Gavin Newsom signed Tuesday.

The new law, AB28, will impose an 11% tax on gun and ammunition retailers and manufacturers. The bill exempts guns sold to active or retired police officers and law enforcement agencies.

The money generated would pay for gun violence prevention programs and school security measures.

"Assembly Bill 28 is based on a simple and straightforward premise, that we should prioritize the safety of our kids over the profits of the gun industry," the bill's author, Assembly Member Jesse Gabriel, D-Los Angeles, said during a press conference in Sacramento.

Advocates for the gun industry argued such programs should be funded through other sources, and that the new tax would unfairly burden lawful gun owners, who would bear the ultimate cost of the tax.

Newsom also signed a bill that will require guns sold in California to contain "microstamping" technology, which imprints cartridge casings with a unique identifier that can allow police to identify the gun used in a shooting. That law, SB452, is scheduled to take effect in 2028.

Newsom also signed a law, SB2, that aims to limit where people can carry guns. The National Rifle Association and other gun organizations are already suing over the measure, arguing it would violate Californians' Second Amendment rights.

SB2 was a response to the U.S. Supreme Court's June 2022 ruling striking down a New York law that required individuals to show a special need for self-defense in order to carry a concealed firearm in public. California has a similar law. The Supreme Court has said guns can be barred from sensitive places.

Gun control advocates cheered the signings as a major victory.

"California has one of the lowest rates of firearm death in the nation because of their record of proven and effective gun violence prevention laws," Kris Brown, president of the gun violence prevention group Brady, wrote in a statement. "Today, California improved on that strong record with even more gun safety laws that will save countless lives."

Whether California's new gun restrictions comply with the Second Amendment standards the Supreme Court declared last year will likely be determined in court. The Supreme Court justices have already agreed to decide whether California, other states and the federal government can enforce longstanding laws banning firearms possession by people who have been found by a judge to have committed or threatened domestic violence against a partner or close family member.

A federal judge in Texas ruled in a separate case last week that the ban on gun purchases by those under felony indictment was unconstitutional under the Supreme Court's new standard, and the Justice Department has appealed to the Fifth Circuit in New Orleans, the same court that struck down the domestic-violence gun law in March.

Shortly after Newsom signed the new laws, the National Rifle Association criticized him, calling out the tax

specifically as an "attempt to penalize citizens for exercising their constitutional rights."

"It is a blatant and egregious attack on the rights of law-abiding Californians and a calculated maneuver to dismantle the Second Amendment," NRA Western Regional Director Dan Reid wrote in a statement. "The NRA vows to fight these oppressive laws, standing firm with the majority of Americans in opposition to Newsom's draconian initiatives."

Another suit against SB2 was filed Tuesday in federal court in Los Angeles by the Firearms Policy Coalition challenging the measure's ban on carrying firearms in "sensitive locations" such as parks, museums, libraries, restaurants, liquor stores and sports arenas. One plaintiff, a San Diego County man, said he regularly brings his gun to an amusement park to protect his wife and other relatives who have small children. Such prohibitions, the lawsuit contended, are not part of any historical tradition of U.S. gun regulation and therefore violate the Second Amendment standards the Supreme Court declared in June 2022.

After signing the legislation, Newsom acknowledged the laws he just approved will likely be challenged in court.

"It's great what we're doing, but it may not be enough," Newsom told reporters. "They're coming after these laws, and they're winning in federal courts."

Newsom's action Tuesday comes a week after lawmakers passed his highest-profile gun control initiative: a resolution that made California the first state to call for a convention to add a gun control amendment to the U.S. Constitution.

Newsom called for lawmakers to pass the resolution because he argues a constitutional convention is the only way to enshrine key gun control policies into law across the nation, especially in light of recent federal rulings striking down gun laws. The resolution calls for an amendment to raise the age to buy a gun in the United States to 21, mandate background checks for firearms buyers, impose a waiting period for gun purchases and ban assault weapons nationwide.

Such a convention could be triggered if two-thirds of state legislatures call for one. It would be the first constitutional convention since the Constitution was adopted in 1789.

Bob Egelko contributed to this report.

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